

Court No. - 21

Case :- WRIT - C No. - 14941 of 2023

Petitioner :- Munna Prasad Soni And Another

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Kameshwar Singh, Sudhanshu Kumar Singh

Counsel for Respondent :- C.S.C., Chetan Chatterjee

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

1. The final assessment order records that a notice of provisional assessment dated 24.07.2021 was issued to the petitioners requiring them to file their objection and to appear for hearing on 02.08.2021. Concededly, there is no clear notice of fifteen days as provided under Clause 6.8 of the U.P. Electricity Supply Code, 2005.

2. Learned counsel for the respondent-Corporation very fairly states that the instant matter is covered by the order passed today in Writ-C No. 14162/2023. The operative part of the order of the said writ petition is as follows :-

"While we quash the order of final assessment and the consequential action taken by the respondents for realization of the said sum, we leave it open to the respondents to proceed afresh in accordance with law. At the same time, we direct the Registrar (Compliance) to communicate the instant order to the Managing Director of the concerned DISCOM so that the manner in which the assessing officers of the Department are proceeding in cases of assessment, comes to his notice and appropriate action as deemed necessary is taken by him against the erring officer.

The petition is accordingly allowed to the extent indicated above."

3. Accordingly, the instant petition also stands disposed of in same manner.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 2.5.2023

Rama Kant